NINJAS STEM FOUNDATION

Board & Officer Responsibilities

Roles, Authority & Accountability | NSF-GV-01

PROPOSED FOR BOARD APPROVAL • Effective Date: _____

Drafting status. A subordinate proposed policy only. It does not replace the filed Certificate of Formation, presently effective bylaws, existing legal rights, or actual Board approvals. References to the October 2026 proposed bylaws describe a contemplated framework, not an adopted rule.

1. Purpose, authority, and hierarchy

This policy explains the respective responsibilities of the Board of Directors, individual directors, elected officers, coaches and designated program leaders, and advisory or operational committees. Its purpose is to prevent a person's title, family relationship, donation, or informal participation from being mistaken for corporate authority.

The Board directs the affairs of NSF subject to applicable Texas law, the filed Certificate of Formation, and legally effective bylaws. Officers and delegates have only the powers established by those sources or valid Board action. A committee, student program, or roster position does not automatically create a corporate Board vote or officer appointment.

2. Responsibilities reserved to the Board

- Approve strategic direction, program objectives, material policies, annual budgets, and organizational priorities; receive periodic educational and financial reports.
- Lawfully elect or appoint directors and officers and address their vacancies, resignation, or removal under the governing documents and applicable law.
- Approve matters reserved by the Certificate, bylaws, financial policy or Board resolutions: material contracts, borrowing, bank authority, material settlements or litigation decisions, and significant program/asset commitments.
- Supervise officers, coaches and committees, establish documented delegations, evaluate material conflicts, ensure appropriate records access and preservation, and oversee nonprofit tax and safeguarding compliance.
- Authorize new Foundation-operated teams or material program expansions, distinguishing them from independent teams receiving educational mentorship.

Directors must exercise independent judgment. The chair or President does not acquire an additional vote or unilateral power to overrule the Board merely by presiding. Board action occurs through the meeting or written-consent process actually authorized at the time of action.

3. Individual director responsibilities

- Prepare for meetings, evaluate relevant information, deliberate in good faith and use ordinary care in what the director reasonably believes are NSF's interests.
- Identify material financial and personal interests, follow valid conflict procedures, and seek independent review where required.
- Protect confidential student, donor and organizational information while respecting lawful inspection, reporting and production rights.
- Maintain respectful participation. Substantive dissent, lawful complaints, records requests and legal proceedings are not by themselves misconduct.
- Understand that service on the Board is distinct from parent participation, volunteer assistance, an officer title, or a student role.

4. Officer responsibilities and limits

The original May 2026 bylaws identify five officer roles, while a later proposed amendment would replace the Public Relations & Fundraising Director office with an Outreach Committee. Until that change is validly adopted and implemented, do not treat a proposed replacement as eliminating a currently held office.

Role	Core functions	Limits and accountability
President	Preside at Board meetings; coordinate execution of approved strategy; supervise general operations and authorized outside relations.	No unilateral Board vote, corporate removal power, unrestricted spending, settlement, or authority to suppress a director's lawful participation.
Vice President	Support the President, coordinate delegated operations and event logistics, and act as substitute only within applicable authority.	The title alone does not confer independent Board power, spending rights, or bank access.

Secretary	Issue/retain notices and minutes; maintain corporate roster and records; document resolutions, appointment terms, official correspondence, and legal holds.	Minutes record actual motions, quorum, votes, recusals and corrections; historical records are not rewritten to create approval.
Treasurer	Manage authorized receipts and disbursements; maintain ledgers, restrictions, reimbursement files, budgets, asset information and reports; coordinate applicable filings.	Payment execution does not replace prior authorization; own reimbursements require independent review.
Public Relations & Fundraising Director (if still operative)	Coordinate publicity, sponsorship, fundraising, outreach and volunteers within authorized policies until lawful transition.	No default authority to bind NSF financially or override coaches' student-work supervision.

5. Outreach Committee and other program appointments

If duly established, an Outreach Committee may coordinate approved outreach documentation, host relationships, events, volunteers, impact records and fundraising support. The Committee operates under Board oversight, and its membership alone creates no corporate office or Board vote. A separate Committee Charter defines appointments, duties, approvals and record handover.

Coaches are responsible for instructional tasks, student assignments, student-created work and safety within the Board's delegation. The coach's role does not confer authority over corporate finances, contracts, Board membership or organizational settlements. Program-specific differences should be resolved between responsible adults or escalated to the authorized decision-maker—not given to students as competing commands.

6. Delegation and decision records

A delegation must identify the decision-making role or individual, scope, limits (including amounts where relevant), duration, reporting route, and who may substitute during absence or material conflict. The Secretary retains Board delegation resolutions; the Treasurer retains related finance authorizations. Routine work within a valid delegation need not be approved again, but the delegate may not enlarge the delegation unilaterally.

7. Transitions, review, and prospective effect

Corporate director resignation, officer resignation, student withdrawal, and committee/volunteer departure are separate events. A notice or decision should state the role and effective date. Departing personnel must preserve and hand over NSF property, accounts, communications, and pending work without requiring unrelated personal passwords. The Board reviews this responsibilities policy periodically.

This policy applies prospectively after valid adoption. It does not determine the validity or effect of prior director appointments, departures, meetings, votes, communications, or the pending dispute.